

Abdul Salim Shaikh (Siddique) And ... vs State Of Maharashtra on 7 October, 2013

Author: Abhay M. Thipsay

Bench: Abhay M. Thipsay

Tilak

1/14

BA-1118-13

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION

CRIMINAL BAIL APPLICATION No. 1118 of 2013

Abdul Salim Shaikh (Siddique) and another ...
versus

Applicants

State of Maharashtra

...

Respondent

Mr. A. Majeed Memon, Advocates for the applicant.

Mrs. S.D. Shinde, APP for the State- Respondent.
Mr. Shishir Hiray, Advocate for Ist informant.

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CORAM : ABHAY M. THIPSAY, J

ORDER RESERVED : 6th AUGUST, 2013.

ORDER PRONOUNCED : 7th OCTOBER, 2013

ORAL ORDER :

1 The applicants are the accused in a case arising out of C.R. No. I - 63/2013 of Sheel Dahighar Police Station, Thane. The said C.R. was initially registered in respect of offences punishable under Section 336 of the Indian Penal Code (IPC), Section 304 of IPC, Section 337 of IPC, Section 338 of IPC read with Section 34 of IPC. The applicants were arrested on 06.04.2013 by the Crime Branch, Thane and were produced before the Magistrate on 07.04.2013 for obtaining their remand in police custody. In the course of investigation, the accusation of some other offences also came to be levelled against the applicants and other accused in this case.

Tilak 2/14 BA-1118-13 On 06.06.2013, when the investigation was still pending, the applicants applied for bail on the ground that the maximum period of detention pending investigation, as permitted by Section 167(2) of the Code of Criminal Procedure (hereinafter referred to as "the Code") was over, and that, since the investigation was still incomplete, the applicants were entitled to be released on bail, mandatorily, as per the proviso to sub-section (2) of Section 167 of the Code. This application filed by the applicants and the other accused was heard by the learned Additional Sessions Judge/Special Judge under the Prevention of Corruption Act Thane, who rejected the same, inter alia, by holding that the maximum period of detention as permissible under the first proviso to sub-

section (2) of Section 167 of the Code was 90 days in this case, and not 60 days, as contended by the applicants. In other words, though the contention of the applicants was that sub-clause (ii) of clause (a) of the first proviso to sub-section (2) of Section 167 of the Code was applicable in their case, the learned Judge did not agree with this contention and held, not sub-clause (ii), but sub-clause (i) of the clause (a) of the said proviso was applicable in the facts and circumstances of the case.

Being aggrieved thereby, the applicants have approached this Court contending that on the expiry of 60 days from the date of their first remand in custody, they were entitled to be released on bail, as the investigation had not been completed till that time.

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2. I have heard Mr. Majeed Memon, the learned counsel for the applicants. I have also heard Smt. S.D. Shinde, the learned Additional Public Prosecutor for the State.

3. The learned Additional Public Prosecutor has filed an affidavit of the Investigating Officer, - Shri Pandit Kendre, Assistant Commissioner of Police, Crime Branch, - for opposing the present application. Also, in view of the contentions advanced, the case diaries were called for, for examining the certain aspects of the matter.

4. It is not in dispute that the charge-sheet came to be filed within the period of 90 days from the first date on which the detention of the applicants was authorized by remanding them in custody. Therefore, the only question in this case is, whether the case of the applicants would fall under sub-clause (i) of clause (a) of the first proviso to sub-section (2) of Section 167 of the Code, as contended by the learned A.P.P., or whether, it would fall under clause (ii) thereof, as contended by the learned counsel for the applicants.

5. Mr. Majeed Memon, the learned counsel for the applicants submitted that he was not advancing any arguments on the merits of the allegations levelled against the applicants and about the value, or reliability of the material, which the Investigating Agency claims as exists, against them. He made it clear that he was seeking bail only on the ground that the applicants had been detained beyond the maximum period Tilak 4/14 BA-1118-13 permitted by law, which according to him, as aforesaid, was 60 days from the date on which the applicants' detention into custody was first authorised. I have, therefore, not examined the merits of the matter i.e. the reliability of the material, said to be available against the applicants and whether a prima facie case of the alleged offences has been made out against them. I have examined the matter only from the point of view, as to whether, a right to be released on bail, mandatorily, had accrued in favour of the applicants in accordance with aforesaid relevant provisions and whether such right has been wrongly denied to them.

6. Mr. Majeed Memon, the learned counsel submitted that the most serious allegation against the applicants is in respect of an offence punishable under Section 304 of IPC. He submitted that he did not intend to raise any contentions, for the present, as to whether the acts and omissions attributed to the applicants would amount only to an offence punishable under Section 304A of IPC and not to an offence punishable under Section 304 of IPC. His emphasis was on the position that even assuming that the allegations levelled against the applicants amount to an offence punishable under Section 304 of IPC, still, they would amount to an offence punishable under Part II of Section 304 of IPC and not Part I thereof. He submitted that the offence falling under Section 304 Part II is punishable with a maximum term of imprisonment for a period of 10 years, and that, therefore, the maximum period of detention pending investigation as permissible under law would be only 60 days. He submitted that the learned Additional Sessions Judge/Special Judge wrongly held the offence to be one falling Tilak 5/14 BA-1118-13 under Part-I of Section 304 of IPC and denied bail to the applicants on the reasoning that the period of detention pending investigation, therefore, could be upto 90 days, which period was not over when the applicants sought their release on bail by referring to the relevant provisions of law.

7. Smt. S.D. Shinde, the learned Additional Public Prosecutor, vehemently contended that the view of the matter as taken by the Additional Sessions Judge/Special Judge was proper and in accordance with law, and that, considering the nature of the allegation against the applicants, they were governed by sub-clause

(i) of clause (a) of the first proviso to the said sub-section.

8. The relevant part of sub-section (2) of Section 167 of the Code may be reproduced here, for sake of ready reference :-

"167. Procedure when investigation cannot be completed in twenty-four hours.-

(1) ***** (Omitted) (2)".....

Provided that -

(a) the Magistrate may authorise the detention of the accused person, otherwise than in the custody of the police, beyond the period of fifteen days, if he is satisfied that adequate grounds exist for doing so, but no Magistrate shall authorise the detention of the accused person in custody under this paragraph for a total period exceeding, -

(i) ninety days, where the Tilak 6/14 BA-1118-13 investigation relates to an offence punishable with death, imprisonment for life or imprisonment for a term of not less than ten years;

(ii) sixty days, where the investigation relates to any other offence, and, on the expiry of the said period of ninety days, or sixty days, as the case may be, the accused person shall be released on bail....." (Emphasis supplied)

9. Mr. Memon relied upon the decision of the Supreme Court of India in the case of "Rajeev Chaudhary V/s State of Delhi (AIR 2001 SC 3369), wherein the question as to what would be the maximum period of detention pending investigation with respect to an offence punishable under section 386 of IPC fell for consideration of Their Lordships. Section 386 of the IPC provides that the offender 'shall be punished for imprisonment for a term which may extend to 10 years and shall also be liable to fine.' Their Lordship considered as to how the term 'not less than 10 years' appearing in sub-section (i) of clause (a) of the first proviso to Section 167(2) is to be construed and held, inter alia, that clause (i) of sub-clause (a) of the proviso to section 167(2) would be applicable to an offence punishable (i) with death; (2) imprisonment for life; and (3) imprisonment for a term not less than 10 years; and that, it would not cover the case of an offence for which punishment could be of imprisonment for less than 10 years. In other words, it was held that the expression 'not less than' occurring in the aforesaid sub-clause (i) would mean that imprisonment for that particular offence should be 10 years or more. The offence punishable under section Tilak 7/14 BA-1118-13 386 of IPC was held to be governed by sub-clause (ii) of clause (a) of the first proviso to section 167(2).

10. This legal position about the interpretation of the term "not less than 10 years" occurring in aforesaid sub-clause is not in dispute. As a matter of fact, the learned Additional Sessions Judge/Special Judge also did not dispute this. What he held is that whether the offence allegedly committed by the applicants would be one under Part I or Part II of section 304 of IPC, could be ascertained only after the conclusion of the trial. He resorted to elaborate reasoning and reproduced certain observations made in some authoritative pronouncements of the Supreme Court of India, and held that, the investigation could not be said to be in relation to an offence punishable under Section 304 Part II of IPC and it should be held as being in relation to an offence punishable under section 304 of IPC. According to the learned Judge, the division of the said section into two parts was not material in the context of the provisions of section 167(2) of the Code, and that, in either case, the offence was one punishable under section 304 of IPC, which provided (by Part I thereof) punishment of imprisonment for life. He also observed that the case was also alleged to be in respect of the offence punishable under section 467 of IPC, which was punishable with imprisonment for life.

11. It is this finding of the learned Judge viz :- that the offence could be termed as one punishable under section 304 of IPC thereby suggesting that it could also be one punishable under Part I

thereof also, that is mainly attacked by Mr. Memon, the learned Tilak 8/14 BA-1118-13 counsel for the applicants. Though there is, undoubtedly, substance in the contentions advanced by the learned counsel, it is not necessary to discuss the relevant aspects any further, as the crucial aspect of the matter appears to be different.

12. In the course of arguments, Smt. S.D. Shinde, the learned Additional Public Prosecutor emphasized that the investigation also related to an offence punishable under section 467 of IPC, which offence was punishable with imprisonment for life. Instead of advancing contentions as to 'whether acts attributed to the applicants and the other accused would amount to an offence falling within first part of section 304 of IPC, or the second part thereof', or 'whether the division of the offence punishable thereunder in two parts, should be ignored at that stage', she opposed the application basically by contending that in any case, the offence punishable under section 467 of IPC, which was revealed to have been committed, in the course of investigation, the sub-clause (i) of clause (a) of the said proviso would apply, and that, therefore, there is no question of the applicants having been entitled to be released on what is popularly termed as 'default bail'.

13. Indeed, section 467 of IPC provides for a punishment of imprisonment for life with respect to an offence mentioned thereunder. It cannot, therefore, be disputed that in case of an investigation into an offence of forgery of valuable security, made punishable under section 467 of IPC, the maximum period for which detention pending investigation can be authorized under section 167 (2) of the Code, would be of 90 days.

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14. When the learned Additional Public Prosecutor emphasized this aspect of the matter, the learned counsel for the applicants submitted that there would be no basis for levelling the accusation of an offence punishable under Section 467 of IPC. He submitted that the case of the prosecution was in respect of collapse of a building, resulting into the death of several persons, and therefore, the case was basically of homicidal deaths, which according to him at the highest, would amount to an offence punishable under Part II of section 304 of IPC. He submitted that when this is the main allegation, the concept of investigation into an offence of forgery of valuable security, cannot be brought into picture, just to have the benefit of an extended period of investigation.

15. I have carefully considered this matter. In order to ensure that the claim of investigation being into an offence punishable under section 467 of IPC was not baseless, and/or not made only with an object of defeating the relevant provisions of law, which provide for compulsory release of accused persons if investigation would not be completed within the specified period, I had called for the case diaries.

16. I have glanced through the case diaries.

17. It is not in dispute that the accusation of an offence punishable under section 467 of IPC came to be levelled on 29.04.2013 and the said offence, as also the offences punishable Tilak 10/14 BA-1118-13 under Section 420 of IPC, Section 467 of IPC, Section 468 of IPC, Section 471 of IPC

read with Section 109 of IPC were added in the case. Subsequently, the allegation of an offence punishable under section 13(1)(d) of the Prevention of Corruption Act has also been levelled in the case.

18. In the course of arguments, I have ascertained from the record, as to how the question of 'forgery' arose in a case which is basically of homicidal deaths, as a result of the collapse of a building. In order to understand this aspect of the matter, a brief reference to the facts of the case as alleged by the investigating agency would be necessary.

The applicants are said to be doing the business of building construction though, they do not have the requisite qualifications/knowledge or permission. That, the applicants and the some other accused, in pursuance of a conspiracy hatched between them and/or in furtherance of the common intention of all of them, secured some land belonging to tribals, by preparing forged documents, though such transactions were prohibited by law.

Thus, the allegation is of their having committed forgery of certain documents for taking possession of a certain land for the purpose of carrying out construction work thereon. That, thereafter, the applicants, without the requisite permission of the Thane Municipal Corporation, hurriedly constructed a building on a part of the land so acquired. That, the entire construction work was got done hurriedly without bothering for the quality thereof. That, such improper, illegal construction work was carried out inspite of fully Tilak 11/14 BA-1118-13 being aware of the fact that this could create danger to the lives and property of several persons. A number of forged documents were prepared to show that the construction work that had been carried out, was authorized and as per law. For constructing the building in this manner, the applicants had bribed the Municipal Officers. That, the building ultimately collapsed, resulting in the death of 74 person and causing injuries to 62 persons.

19. Though a number of documents which are alleged to be 'forged', are not forged :- in the sense that only the recitals therein appear to be false and though, therefore, the same might amount to some other offence/s, it would not amount to forgery, there are at least a few documents, which appear to be forged and since these documents, prima facie, seem to be purporting to be valuable securities, it cannot be said that in this case, no investigation into an offence punishable under section 467 of IPC was required to be done. In particular, there is a specific allegation that a development permission certificate, purportedly issued by the Thane Municipal Corporation, is a forged document, and that, it has not been issued by the said Municipal Corporation, and is not having the signature of the Deputy City Engineer, Town Development, as it purports to have.

20. Since no arguments on merits of the allegations were advanced, there has been no occasion to meticulously analyse whether any offence punishable under Section 467 of IPC was, indeed, disclosed or involved in this case. On taking a prima facie view, however, at least a few documents appear to be forged and Tilak 12/14 BA-1118-13 the forgery appears to be in respect of such documents, as would attract the provisions of section 467 of IPC. However, in my opinion, the crucial aspect of the matter is entirely different. The real question is whether an occasion had arisen for the Investigating Agency to carry out investigation relating to an offence punishable under

section 467 of IPC. In my opinion, indeed it had arisen. When the construction was found to be in contravention of the required norms and it appeared that there existed documents to show that the construction was being carried out in a regular manner and with the requisite permissions, whether the documents in question were genuine or false/forged needed investigation. In the facts of the case, considering the manner in which the land was acquired, construction was carried out, permissions from the concerned authorities were obtained - or falsely claimed and shown to have been obtained - the commission of an offence punishable under section 467 of IPC could very well be suspected and it, therefore, cannot be said that investigation into this aspect of the matter was not necessary. Though the offence of forgery came to be suspected while investigating into the case of homicidal deaths arising on account of the collapse of a building, the manner in which the building came to be constructed could not be taken out of the purview of the investigation that was going on. It may be observed that the allegations of the offences of cheating, forgery, forgery for cheating, forgery of valuable security, using a forged document as genuine knowing the same to be forged, etc were added in the case within a month from the arrest of the applicants. Such allegations cannot be treated as fanciful or invented, or unconnected with the case of offences, investigation into which had Tilak 13/14 BA-1118-13 originally commenced. The addition of the said offences was bonafide and genuine. The addition of the offence punishable under Section 467 of the IPC in the case, does not, certainly, seem to be absurd, or done with mala-fide intention of getting the period of detention pending investigation, extended. It can be said that the investigation was relating (also) to an offence punishable under section 467 of IPC. Consequently, it cannot be said that the maximum period authorizing detention pending investigation in this case could be of 60 days.

21. As a result of the aforesaid discussion, I hold that, as in this case, the investigation related to offences at least one of which was punishable with imprisonment for life, sub-clause (i) of clause

(a) of the first proviso to section 167 of the Code applied. It, therefore, follows that detention of the applicants could be authorized for a period upto 90 days under the said section. The applicants, therefore, were not entitled to be released on bail, after the expiry of a period of 60 days of detention on the ground that the investigation had not been completed.

22. Indeed, it is rather ironical that with respect to a more serious part of the case i.e. the loss of lives of about 74 persons, the offence would be one punishable under Part II of section 304 of IPC, and therefore, the maximum period for detention pending investigation with respect to such an offence would be only 60 days, while for the forgery of certain documents, which was only incidental to the real object of the applicants, (as has been alleged) the detention for a greater period pending investigation could be Tilak 14/14 BA-1118-13 authorized. This paradox was sought to be emphasized by the learned counsel for the applicants, who thereby suggested that since 'the main offence' would be falling under Part II of section 304 of IPC, the period of detention pending investigation should be reckoned on that basis. Indeed, inspite of noticing a some what paradoxical situation in this regard, I am unable to accept the contention of the learned counsel for the applicants. The prayer for release on bail is made by the applicants on technical grounds. When a party seeking relief purely on a technical ground, fails to get the same, also on a technical ground, all that can be said is that the Law has operated evenly.

23. The application is rejected.

(ABHAY M. THIPSAY, J)